

Andhra Pradesh Infrastructure Authority (Constitution of Committees) Regulations, 2003

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State of Andhra Pradesh - Act

Andhra Pradesh Infrastructure Authority (Constitution of Committees) Regulations, 2003

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Andhra Pradesh Infrastructure Authority (Constitution of Committees) Regulations, 2003

Published on 18 June 2004

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Andhra Pradesh Infrastructure Authority (Constitution of Committees) Regulations, 2003

Published vide Notification No. G.O. Ms. No. 125, Industries & Commerce (INF), dated 18.6.2004

Last Updated 21st August, 2019

From the Chairman, I.A., Lr.No. IA/Int/ Setup/2003/01, dated 26-07-2003.

The Chairman, infrastructure Authority vide his letter read above has furnished the proposals in regard to regulating the Constitution of Committees and Conduct of Business under Section 9 read with Section 78 of the Andhra Pradesh Infrastructure Development Enabling Act, 2001, for approval of the Government.

2.

Government after careful examination in exercise of the powers conferred under Section 78 of the Andhra Pradesh Infrastructure Development Enabling Act 2001 hereby accord approval for the said Regulations as detailed below:-

1.

Short title and Commencement.

(1)

These Regulations may be called the Andhra Pradesh Infrastructure Authority (Constitution of Committees) Regulations, 2003.

(2)

These Regulations shall come into force from the date of publication in the Andhra Pradesh Gazette.

2. Definitions.

(1)

In these Regulations, unless there is anything repugnant in the subject or context: -

(a)

"Act" means "the Andhra Pradesh Infrastructure Development Enabling Act, 2001 (Act No. 36 of 2001).

(b)

"Authority" means "The Infrastructure Authority constituted under Andhra Pradesh Infrastructure Development Enabling Act, 2001 (Act No. 36 of 2001)

(c)

"Section" means a Section of the Act.

(d)

"Executive Committee" Means a Committee appointed by the Authority under Section 9 of the Act.

(e)

"Member" means a member of an Executive Committee.

(2)

the words and expressions used in these Regulations but defined therein shall have the meaning respectively assigned to them in the Act and Rules made under the Act.

3.

Constitution of Committees.

(1)

The Authority may constitute Executive Committee (s) from among its members. The Executive Committee (s) shall be headed either by the Chairperson or by an ex-officio member nominated by the Authority.

(2)

No business shall be transacted at a meeting of the Executive Committee unless half of the total number of members are present at such meeting:

Provided that if a meeting of the Executive Committee is adjourned for want of quorum, any business remaining undisposed of that meeting shall be disposed of at the adjourned meeting and if that meeting is also adjourned for want of quorum that business may be disposed of at the third meeting whether there is quorum or not.

(3)

Any meeting may with the consent of the majority of the members present there at be adjourned from time to time: but no other business shall be transacted at the next adjourned meeting unless the business remaining undisposed of at the previous meeting is first disposed of.

(4)

Every question shall be decided by a majority of votes of the members present and voting on the question, the presiding authority having a second or casting vote in the case of equality of votes.

(5)

A minutes shall be kept by the presiding authority, or the names of the members present and of the proceedings, at each meeting of the Executive Committee in a book which shall be signed by the presiding authority.

(6)

A member shall not vote or take part in the discussion at a meeting of Special Committee on any matter in which he has, directly or indirectly, any share or interest by himself or by his partner or he is professional interested on behalf of the client, principal or other person.

4.

(1)

The Chairperson of the Authority shall have the right of being present at a meeting of the Executive Committee and of taking part in the discussion thereat as a member has but shall not be entitled to vote at such meeting.

(2)

The Executive Committee (s) may be empowered by the Authority to decide on all matters other than the matters reserved for the Authority i.e.,

(a)

Recommendation for sanction to the Government;

(b)

Recommendation on policy formulation and model contracts to Government;

(c)

All decisions pertaining to State support under the items specified in Schedules, II, III, IV and V of the Act;

(d)

Issuance and amendment of guidelines under the Act;

(e)

Issues pertaining to Abuser and poliuter charges;

(f)

Any other issues as decided by Infrastructure Authority.

(3)

The recommendations and approvals of the Executive Committee (s) shall be ratified by the Infrastructure Authority within one week from the date receipt of the recommendations/approvals of the Executive Committee (s) or in the following meeting of the Authority.

(1)

The Authority in addition to the Executive committee (s) may delegate any of its powers and/or functions other than those reserved for Authority to any Sub-Committee of its members or to such Officer (s) as it may be deem appropriate. The Authority shall also ensure that powers/functions delegated to Executive Committee (s) and Sub-Committee (s) are exclusive.

(2)

The Authority shall specify the terms of reference for the Sub-Committee (s) including the objectives for forming such committees, the key tasks assigned the time limit for completion of such tasks and the procedure to be followed by such Sub-Committee (s).

(3)

The Authority shall nominate any ex-officio member as the Chairperson of such Sub-Committee (s).

(4)

The decision/recommendations of the Sub-Committee (s) shall be placed for consideration of the Authority within one week of receipt of its decision/recommendations or in the following meeting of the Authority.

The Infrastructure Authority shall publish the above Regulations in the Andhra Pradesh Extraordinary Gazette as required under the Act.

The Infrastructure Authority is directed to take necessary action accordingly.

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